

FRAMEWORK SUPPLY AND DISTRIBUTION AGREEMENT

THIS FRAMEWORK SUPPLY AND DISTRIBUTION AGREEMENT (the "Agreement") is made and entered into on this **1st day of February, 2026** (the "Effective Date"), by and between:

NOVATECH INDUSTRIES B.V., a private limited liability company incorporated under the laws of the Netherlands, having its registered office at High Tech Campus 45, 5656 AE Eindhoven, The Netherlands, registered with the Dutch Chamber of Commerce under number 88990011 (hereinafter referred to as the "**Supplier**");

AND

TRANSCARPATHIA LOGISTICS S.R.L., a limited liability company incorporated under the laws of Romania, having its registered office at Bulevardul Primăverii 22, District 1, Bucharest, Romania, registered with the Trade Registry under number J40/1234/2015, sole registration code (CUI) RO34567890 (hereinafter referred to as the "**Distributor**").

(The Supplier and the Distributor are hereinafter collectively referred to as the "**Parties**" and individually as a "**Party**".)

PREAMBLE

WHEREAS, the Supplier manufactures and sells high-precision industrial automation systems and related components (the "Products"); and **WHEREAS**, the Distributor possesses an established logistics network and commercial presence within the territory of Romania (the "Territory"); and **WHEREAS**, the Parties desire to establish a long-term commercial relationship whereby the Supplier shall supply Products to the Distributor for resale within the Territory, subject to the terms and conditions set forth herein.

NOW, THEREFORE, the Parties agree as follows:

ARTICLE 1: DEFINITIONS AND INTERPRETATION

1.1 "**Confidential Information**" means all technical, commercial, and financial information disclosed by one Party to the other.

1.2 "**Force Majeure**" means an event beyond the reasonable control of a Party, including war, natural disasters, and pandemics, preventing performance of obligations.

1.3 **"Price List"** means the Supplier's standard price list in Euros (€), as amended from time to time.

ARTICLE 2: TERM AND RENEWAL

2.1 **Initial Term.** This Agreement shall commence on the Effective Date and shall remain in full force and effect for an initial period of **three (3) years** (the "Initial Term").

2.2 **Automatic Renewal.** Upon expiration of the Initial Term, this Agreement shall automatically renew for successive periods of **twelve (12) months** (each a "Renewal Term"), unless either Party serves written notice of non-renewal to the other Party at least **six (6) months** prior to the expiration of the then-current term.

ARTICLE 3: ORDERING AND DELIVERY

3.1 **Purchase Orders.** The Distributor shall submit binding Purchase Orders (POs) specifying the quantity and type of Products. No PO shall be deemed accepted until confirmed in writing by the Supplier.

3.2 **Incoterms.** Unless otherwise agreed in a specific PO, all Products shall be delivered **FCA (Free Carrier) Eindhoven, The Netherlands**, in accordance with **Incoterms® 2020**. Risk of loss transfers to the Distributor upon delivery to the carrier.

3.3 **Title.** Title to the Products shall pass to the Distributor only upon full payment of the Price.

ARTICLE 4: FINANCIAL OBLIGATIONS AND PAYMENT TERMS

4.1 **Prices.** The prices for the Products shall be as set forth in the Price List current at the time of the Purchase Order. All prices are denominated in **Euros (€)** and are exclusive of VAT, customs duties, and transport costs.

4.2 **Payment Terms.** Invoices shall be issued upon shipment. The Distributor shall pay all undisputed invoices within **forty-five (45) days** from the invoice date (Net 45).

4.3 Late Payment Interest. In the event of late payment, the Supplier shall be entitled to charge interest at a rate equal to the reference rate of the European Central Bank plus **eight percentage points (8%)**, in accordance with the **EU Directive 2011/7/EU** on combating late payment in commercial transactions, transposed into Dutch law.

4.4 Minimum Annual Target. To maintain exclusivity in the Territory, the Distributor agrees to purchase a minimum volume of Products with a total value of **€1,500,000 (One Million Five Hundred Thousand Euros)** per calendar year.

ARTICLE 5: WARRANTY AND COMPLIANCE

5.1 Warranty. The Supplier warrants that the Products will be free from defects in material and workmanship for a period of **twenty-four (24) months** from the date of delivery.

5.2 Compliance. The Supplier represents that the Products bear the **CE Marking** and comply with all applicable EU Directives regarding machinery safety and electromagnetic compatibility.

ARTICLE 6: LIMITATION OF LIABILITY

6.1 Liability Cap. The Supplier's total aggregate liability to the Distributor for any claim arising out of or in connection with this Agreement, whether in contract, tort (including negligence), or otherwise, shall be strictly limited to **one hundred percent (100%) of the total amount paid by the Distributor** to the Supplier in the **twelve (12) months** preceding the event giving rise to the claim.

6.2 Exclusion of Indirect Damages. In no event shall either Party be liable for any indirect, special, incidental, or consequential damages, including but not limited to loss of profits, loss of business, or loss of goodwill.

6.3 Exceptions. The limitations in this Article 6 shall not apply to liability arising from: (a) fraud or willful misconduct; (b) death or personal injury caused by negligence; or (c) breach of confidentiality obligations.

ARTICLE 7: TERMINATION

7.1 Termination for Convenience. Either Party may terminate this Agreement at any time without cause by providing at least **six (6) months'** prior written notice to the other Party.

7.2 Termination for Cause. A Party may terminate this Agreement immediately upon written notice if the other Party: (a) commits a **material breach** of any provision of this Agreement and fails to remedy such breach within **thirty (30) days** after receiving written notice requiring it to do so; (b) fails to pay any amount due under this Agreement within fourteen (14) days of the due date; or (c) becomes insolvent, enters into liquidation, or is subject to insolvency proceedings under the laws of its jurisdiction (including the Romanian Insolvency Law No. 85/2014 or the Dutch Bankruptcy Act).

7.3 Effect of Termination. Upon termination, all outstanding invoices shall become immediately due and payable. The Distributor shall cease all marketing and sales of the Products.

ARTICLE 8: GOVERNING LAW AND DISPUTE RESOLUTION

8.1 Governing Law. This Agreement and any non-contractual obligations arising out of or in connection with it shall be governed by and construed in accordance with the **laws of the Netherlands**, excluding the United Nations Convention on Contracts for the International Sale of Goods (CISG).

8.2 Dispute Resolution. Any dispute, controversy, or claim arising out of or relating to this Agreement shall be finally settled by **arbitration** in accordance with the Arbitration Rules of the **Netherlands Arbitration Institute (NAI)**. The arbitral tribunal shall be composed of one (1) arbitrator. The place of arbitration shall be **Amsterdam, The Netherlands**. The language of the arbitration shall be English.

ARTICLE 9: MISCELLANEOUS

9.1 Assignment. Neither Party may assign or transfer any rights or obligations under this Agreement without the prior written consent of the other Party.

9.2 Entire Agreement. This Agreement constitutes the entire agreement between the Parties and supersedes all prior agreements, understandings, and representations.

9.3 Severability. If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

9.4 Notices. Notices shall be sent via courier or registered mail to the addresses listed in the preamble.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

NOVATECH INDUSTRIES B.V. By: _____

Name: Hendrik van der Berg Title: Managing Director

TRANSCARPATIA LOGISTICS S.R.L. By:

_____ Name: Alexandru Popescu Title:
Administrator